

# Conduct and Conflict of Interest Code, 2026

## Standards of conduct, conflicts of interest, disclosure, and the Integrity Commissioner

Draft for adoption by Council and ratification by the Electors | September 30, 2026

|              |                                                                                                                                                                         |
|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Status       | Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.                                                                       |
| Replaces     | The conflict of interest and conduct provisions of By-law No. 2014.2, the Council Accountability and Procedures By-law.                                                 |
| Works with   | Customary Election Regulations, 2026 (Document 05), sections 20, 21, and 24. Council Procedure By-law, 2026 (Document 06). Whistleblower Protection Code (Document 15). |
| Protected    | Amended only by Ratification Vote (section 34).                                                                                                                         |
| Legal review | To be reviewed by legal counsel before adoption.                                                                                                                        |

### Contents

|                                                            |    |
|------------------------------------------------------------|----|
| Part 1 Interpretation and Application . . . . .            | 2  |
| Part 2 Standards of Conduct . . . . .                      | 5  |
| Part 3 Conflicts of Interest . . . . .                     | 7  |
| Part 4 Disclosure . . . . .                                | 10 |
| Part 5 Integrity Commissioner . . . . .                    | 11 |
| Part 6 Complaints, Investigations, and Sanctions . . . . . | 12 |
| Part 7 Other Officials . . . . .                           | 14 |
| Part 8 General . . . . .                                   | 15 |
| Explanatory Notes . . . . .                                | 17 |

## CONDUCT AND CONFLICT OF INTEREST CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

**WHEREAS** the members of Council hold their offices in trust for all Members of the Fort McMurray No. 468 First Nation, on and off the Reserves; and

**WHEREAS** the members of Council have fiduciary obligations to manage the property, funds, and other assets of the First Nation in the interests of its Members; and

**WHEREAS** the Customary Election Regulations require every member of Council to comply with this Code, and provide for removal from office for serious or repeated breaches of it; and

**WHEREAS** Members are entitled to know the private interests of those who make decisions on their behalf, and to have complaints about the conduct of those persons decided by someone who is independent of them;

**NOW THEREFORE** the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

### **Part 1** **Interpretation and Application**

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#### **1 Citation**

- 1.1 This Code may be cited as the *Conduct and Conflict of Interest Code of the Fort McMurray No. 468 First Nation, 2026*.

## **2 Definitions**

### **2.1 In this Code:**

- (a) "Appeals Panel" means the panel established by the Appeals and Complaints Code;
- (b) "Band Manager" means the senior employee of the First Nation responsible for its administration, however titled;
- (c) "Confidential Information" has the meaning given in the Council Procedure By-law;
- (d) "Conflict of Interest" means a situation in which an Official, or a member of the Official's Immediate Family, has a Private Interest that could influence, or could reasonably appear to influence, the exercise of the Official's office or duties;
- (e) "Council" means the Chief and the Councillors in office;
- (f) "Council Meeting" has the meaning given in the Council Procedure By-law;
- (g) "Council Secretary" means the person appointed under the Council Procedure By-law;
- (h) "Election Regulations" means the Customary Election Regulations of the First Nation as amended from time to time;
- (i) "Elector" has the meaning given in the Election Regulations;
- (j) "Finance Officer" means the senior financial employee of the First Nation;
- (k) "First Nation" means the Fort McMurray No. 468 First Nation;
- (l) "First Nation Business Entity" has the meaning given in the Election Regulations;
- (m) "Gift" means money, property, services, travel, hospitality, or any other benefit given without payment of fair value, other than a benefit available to Members generally or provided by the First Nation under an approved budget or policy;
- (n) "Immediate Family" has the meaning given in the Election Regulations;
- (o) "Integrity Commissioner" means the person appointed under Part 5;
- (p) "Member" means a person whose name appears on the Membership List of the First Nation, whether the person lives on or off a Reserve;
- (q) "member of Council" means the Chief or a Councillor;
- (r) "Notice" has the meaning given in the Council Procedure By-law;
- (s) "Official" means a member of Council and, for the purposes of Part 7, a person described in section 30.1;
- (t) "Private Interest" means a financial, business, employment, family, or personal interest, but does not include an interest that a person shares with Members generally or with a broad class of Members;
- (u) "Quorum of Council" has the meaning given in the Council Procedure By-law;
- (v) "Resolution" has the meaning given in the Council Procedure By-law; and
- (w) "Tribunal" means the Election Appeal Tribunal established under the Election Regulations.

### **3 Application**

- 3.1 Parts 2 to 6 apply to every member of Council from the time the member takes the Oath of Office until the member ceases to hold office, and sections 8 and 16 continue to apply after that.
- 3.2 Part 7 applies to the Officials described in section 30.1.
- 3.3 This Code is in addition to the Election Regulations, the Council Procedure By-law, and the criminal law. Nothing in this Code limits any proceeding under any of them.

## **Part 2**

### **Standards of Conduct**

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#### **4 General Standards**

4.1 Each member of Council shall:

- (a) carry out the duties of office honestly, impartially, and in good faith, for the benefit of the Members as a whole and not in the service of individual Members or family groups;
- (b) deal fairly and impartially with all Members, showing no favouritism, prejudice, or bias in any decision affecting the rights or interests of Members;
- (c) treat Members, employees, contractors, and other members of Council with respect;
- (d) when dealing with other governments, businesses, or third parties on behalf of the First Nation, act in a considerate, professional, and responsible manner; and
- (e) complete orientation training on the Election Regulations, the Council Procedure By-law, this Code, the Financial Administration Code, and the Spending and Contracts Code within ninety (90) days after taking office.

#### **5 Respect for Persons**

- 5.1 No member of Council shall harass, threaten, intimidate, or abuse any Member, employee, contractor, or other member of Council, including by threatening a person's employment, housing, contract, or access to a program or service.
- 5.2 No member of Council shall attend a Council Meeting or a public function of the First Nation while impaired by alcohol or drugs.

#### **6 Reprisal**

- 6.1 No member of Council shall retaliate, or direct or permit retaliation, against any person because that person:
- (a) made a complaint, requested records, or signed a petition;
  - (b) gave information to the Integrity Commissioner, the Electoral Officer, the Tribunal, the Appeals Panel, an auditor, a funding agency, the police, or a court;
  - (c) voted or campaigned for or against any person; or
  - (d) took part in any proceeding under a Document of the First Nation.
- 6.2 The Whistleblower Protection Code applies to any reprisal against a person described in section 6.1.

## **7 Use of Office and Property**

- 7.1 No member of Council shall use the funds, employees, employee time, vehicles, equipment, facilities, or communications of the First Nation or of a First Nation Business Entity for any personal benefit, or to support or oppose any candidate in an Election, except on the same terms available to Members generally.
- 7.2 No member of Council shall use the office, or the influence of the office, to obtain a benefit for themselves, their Immediate Family, or any other person that is not available on the same terms to Members generally.
- 7.3 Where a Document of the First Nation assigns a decision on housing, education support, a loan, membership, hiring, a contract, or another program or benefit for an individual to a person or body other than Council, no member of Council shall contact that person or body about the decision, except to ask in writing, at the request of the applicant, about the status of the application. A written inquiry under this section shall be placed on the file.

## **8 Confidential Information**

- 8.1 No member of Council shall disclose Confidential Information acquired as a member of Council, or use it for personal gain or for the benefit or harm of any person, except as required by law or permitted by the Access to Information and Privacy Code.
- 8.2 The obligation in section 8.1 continues after the member ceases to hold office.

## **Part 3**

### **Conflicts of Interest**

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#### **9 Duty to Avoid Conflicts of Interest**

- 9.1 Each member of Council shall arrange their private affairs so as to avoid Conflicts of Interest, and shall not allow themselves to be placed in a position where their judgment may appear to be influenced by personal considerations.
- 9.2 No member of Council shall make a decision, or use their office or powers, to provide any benefit to themselves or their Immediate Family that is not available on the same terms to Members generally.
- 9.3 No member of Council shall engage in any activity that demands so much time and attention that it unreasonably interferes with the performance of their duties.

#### **10 Own Remuneration and Benefits**

- 10.1 No member of Council shall move, second, debate, or vote on any matter that sets or pays the member's own remuneration, honorarium, travel, or expenses, or that concerns a contract, loan, benefit, job, or house for the member or the member's Immediate Family.
- 10.2 A vote cast in breach of section 10.1 is void, and a Resolution that would not have passed without that vote is void.
- 10.3 Any amount paid to or for a person under a Resolution that is void under section 10.2 shall be repaid to the First Nation within thirty (30) days after written demand by the Finance Officer. The Finance Officer may deduct any amount not repaid from remuneration otherwise payable to the member of Council.
- 10.4 Section 10.1 does not prevent a member of Council from voting on a budget, a schedule of remuneration to be put to the Electors, or a program that applies to Members generally, if the member does not receive a benefit under it that differs from the benefit available to other Members.

#### **11 Contracts, Loans, and Employment**

- 11.1 While in office, no member of Council shall:
  - (a) receive any loan, advance, or guarantee from the First Nation or a First Nation Business Entity, other than a travel advance under the Financial Administration Code;
  - (b) enter into, renew, or extend any contract with the First Nation or a First Nation Business Entity, directly or through a corporation, partnership, or other entity in which the member holds ten percent (10%) or more or a directorship, except that a contract disclosed before taking office may be completed on its existing terms without extension; or
  - (c) be employed by the First Nation or a First Nation Business Entity.
- 11.2 No member of Council shall take part in any decision to hire, promote, discipline, pay, or dismiss a member of their Immediate Family, or in any decision on a contract, loan, house, or benefit for a member of their Immediate Family.
- 11.3 A member of a member of Council's Immediate Family may apply for employment, a contract, a house, or a program or benefit on the same terms as any other Member. The hiring of, or the award of a contract over ten thousand dollars (\$10,000.00) to, a member of a member of Council's Immediate Family shall be disclosed by Notice within fourteen (14) days.

## **12 Declaration and Withdrawal**

- 12.1 A member of Council who has a Conflict of Interest in a matter before Council shall, before the matter is considered:
- (a) declare the nature of the Conflict of Interest, which shall be recorded in the minutes;
  - (b) leave the room, or the call, for the discussion and the vote; and
  - (c) not attempt to influence the decision in any way, before or after the meeting.
- 12.2 Section 12.1 applies to the Chief and to every Councillor, including a member chairing the meeting.
- 12.3 A member of Council who is uncertain whether they have a Conflict of Interest may ask the Integrity Commissioner for a written opinion under section 22. A member who follows that opinion in good faith is not in breach of this Part.
- 12.4 If, because of declared Conflicts of Interest, a Quorum of Council cannot be formed to decide a matter, the members without a Conflict of Interest may decide it. The decision shall be published by Notice within seven (7) days and reported to the Integrity Commissioner.

## **13 Conflict Register**

- 13.1 The Council Secretary shall enter every Conflict of Interest declared at a Council Meeting in a public Conflict Register within five (5) days after the meeting, stating the date, the member, the matter, and the nature of the interest.
- 13.2 The Conflict Register shall be published on the website of the First Nation.

## **14 Taking Part While in a Conflict of Interest**

- 14.1 Where the Integrity Commissioner finds that a member of Council took part in the discussion of, or voted on, a matter in which the member had a Conflict of Interest:
- (a) the member's vote is void, and section 10.2 applies to the Resolution as if the vote had been cast in breach of section 10.1;
  - (b) no remuneration is payable to the member for thirty (30) days after the finding; and
  - (c) the Integrity Commissioner may recommend any other sanction under section 25.
- 14.2 A second finding under section 14.1 against the same member during the same term is a repeated breach, and the Integrity Commissioner shall recommend removal from office under section 25.1(f).

## **15 Gifts**

- 15.1 No member of Council shall accept, directly or through another person, a Gift worth more than two hundred dollars (\$200.00), or Gifts from one source worth more than five hundred dollars (\$500.00) in total in a year, from any person who has dealings with, or is seeking dealings with, the First Nation or a First Nation Business Entity.
- 15.2 A member of Council shall disclose to the Integrity Commissioner, within thirty (30) days after receiving it, every Gift worth more than one hundred dollars (\$100.00) received in connection with the office.
- 15.3 A Gift received in breach of section 15.1 shall be returned, or its value paid to the First Nation, within thirty (30) days after the member learns of the breach.

## **16 After Leaving Office**

16.1 For twelve (12) months after leaving office, a former member of Council shall not:

- (a) lobby Council, a member of Council, or an employee on behalf of any person for a contract, benefit, or decision; or
- (b) accept employment or a contract with the First Nation or a First Nation Business Entity that was created or approved while they were in office.

## **Part 4**

### **Disclosure**

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#### **17 Statement of Interests**

- 17.1 Each member of Council shall file with the Integrity Commissioner a statement of interests within thirty (30) days after taking office and by June 30 of each year after that, and shall file an updated statement within thirty (30) days after any material change.
- 17.2 The statement of interests shall disclose:
- (a) the member's employment and other sources of income, without amounts;
  - (b) every business, corporation, partnership, or joint venture in which the member or their Spouse holds an ownership interest of ten percent (10%) or more, or a directorship;
  - (c) every contract, loan, or business relationship that the member, their Spouse, or an entity described in paragraph (b) has had with the First Nation or a First Nation Business Entity in the previous three (3) years;
  - (d) every member of the member's Immediate Family employed by, or holding a contract with, the First Nation or a First Nation Business Entity; and
  - (e) every Gift disclosed under section 15.2 in the previous twelve (12) months.
- 17.3 The statement of interests is the Financial Disclosure Statement required by section 24.4 of the Election Regulations, and one filing satisfies both.

#### **18 Public Registers**

- 18.1 The Integrity Commissioner shall publish, and update each quarter, a public register containing a summary of each statement of interests, every Gift disclosed under section 15.2, and a copy of the Conflict Register.
- 18.2 The public register shall not include amounts of income, home addresses, or Confidential Information.

#### **19 Failure to File**

- 19.1 Where a statement of interests is not filed when due, the Integrity Commissioner shall give the member written notice of default and publish it by Notice.
- 19.2 No remuneration is payable to the member from the thirtieth (30th) day after the notice of default until the day the statement is filed, and remuneration for that period does not become payable when the statement is later filed. The Finance Officer shall apply this section on the written notice of the Integrity Commissioner, without the need for a Resolution.
- 19.3 Failure to file within thirty (30) days after the notice of default is a ground for removal under paragraph 20.1(i) of the Election Regulations.

## **Part 5**

### **Integrity Commissioner**

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#### **20 Appointment and Qualifications**

- 20.1 Council shall appoint an Integrity Commissioner by Resolution for a term of four (4) years, after a public call for applications posted for at least thirty (30) days. The appointment continues unless a majority of the Electors voting at the next Annual General Assembly or Special Meeting vote not to confirm it.
- 20.2 The Integrity Commissioner shall be a lawyer, a retired judge, or a person with professional experience in ethics, investigations, or public administration, and shall not be:
- (a) a Member;
  - (b) an employee, contractor, or legal counsel of the First Nation or a First Nation Business Entity, or a person who held any such position in the three (3) years before appointment;
  - (c) Immediate Family of a member of Council; or
  - (d) a candidate in an Election of the First Nation in the four (4) years before appointment.
- 20.3 If the office is vacant for more than ninety (90) days, the Tribunal shall appoint a qualified person.
- 20.4 Council may appoint the same person as Integrity Commissioner and as the investigator under the Whistleblower Protection Code.

#### **21 Independence**

- 21.1 The Integrity Commissioner is independent of Council and Administration. Council shall not direct the Integrity Commissioner, reduce their remuneration during their term, or remove them.
- 21.2 The Tribunal may remove the Integrity Commissioner for incapacity, conflict of interest, misconduct, or failure to perform the duties of the office, after written notice and an opportunity to be heard.
- 21.3 The First Nation shall provide the Integrity Commissioner with the budget and access to records reasonably required to carry out the duties of the office. The budget shall be a separate line in the annual budget of the First Nation.

#### **22 Advice**

- 22.1 Any Official may ask the Integrity Commissioner in writing for an opinion on how this Code applies to them. The Integrity Commissioner shall give a written opinion within fourteen (14) days.
- 22.2 The Integrity Commissioner shall publish a summary of each opinion, without the name of the person who asked, when the matter is no longer before Council.

## **Part 6**

### **Complaints, Investigations, and Sanctions**

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#### **23 Complaints**

- 23.1 Any Member, employee, or member of Council may file a written complaint with the Integrity Commissioner alleging that a member of Council has breached this Code or the Council Procedure By-law. The Integrity Commissioner may also begin an investigation on their own initiative.
- 23.2 A complaint shall state the facts relied on, the date, and the provision alleged to have been breached. The Integrity Commissioner may accept a complaint without the name of the complainant if it contains enough facts to investigate.
- 23.3 The Integrity Commissioner may dismiss a complaint, with written reasons, if it is frivolous, made in bad faith, outside their authority, or filed more than twelve (12) months after the complainant knew of the matter.
- 23.4 The Integrity Commissioner shall not disclose the identity of a complainant or witness without consent, except where disclosure is necessary for a fair investigation or required by law.

#### **24 Investigation**

- 24.1 The Integrity Commissioner shall give the member of Council a copy of the complaint and at least fourteen (14) days to respond in writing.
- 24.2 The Integrity Commissioner may interview witnesses, examine records of the First Nation and of any First Nation Business Entity, and require any member of Council or employee to answer questions and produce records.
- 24.3 Every member of Council and every employee shall cooperate with an investigation. Destroying, altering, or withholding a record, or giving false information to the Integrity Commissioner, is a breach of this Code.
- 24.4 The Integrity Commissioner shall issue a written report with findings and reasons within ninety (90) days after receiving the complaint, unless the complainant and the member agree to a longer time.

#### **25 Sanctions**

- 25.1 Where the Integrity Commissioner finds a breach, the report shall impose or recommend one or more of the following:
- (a) a written reprimand;
  - (b) a public apology;
  - (c) repayment of any amount gained, or any loss caused, by the breach;
  - (d) removal from any committee, from any board of a First Nation Business Entity, or from any other appointment made by Council;
  - (e) suspension of remuneration for up to ninety (90) days; or
  - (f) in the case of a serious breach or repeated breaches, removal from office under the Election Regulations.
- 25.2 In choosing a sanction, the Integrity Commissioner shall consider the seriousness of the breach, whether it was deliberate, whether the member gained from it, any harm to the First Nation or any person, and any previous breach.

## **26 Effect of the Report**

- 26.1 The report shall be delivered to Council, the member, and the complainant, and published, excluding Confidential Information and the identity of any complainant or witness who has not consented, within seven (7) days.
- 26.2 Council shall table the report at its next Council Meeting. The member concerned shall not vote on any matter arising from it.
- 26.3 A sanction under paragraphs 25.1(a) to (e) takes effect thirty (30) days after the report is delivered, unless the member files an appeal with the Appeals Panel within that time.
- 26.4 An appeal under section 26.3 is decided on the record of the investigation and written submissions, within thirty (30) days after it is filed. The Appeals Panel may confirm, reduce, or set aside the sanction, and its decision is final, subject to judicial review.
- 26.5 Council shall not reduce, suspend, or set aside a sanction by Resolution.

## **27 Removal and Referral to Police**

- 27.1 A recommendation of removal under paragraph 25.1(f) shall be referred to the Tribunal under section 21.7 of the Election Regulations.
- 27.2 Where the Integrity Commissioner has reasonable grounds to believe an offence has been committed, they shall refer the matter to the police and inform Council and the Finance and Audit Committee.

## **28 Annual Report**

- 28.1 The Integrity Commissioner shall present an annual report to Members at the Annual General Assembly, listing the complaints received, their outcomes, the opinions given, the statements of interests filed late or not filed, and any recommendations for changes to this Code.

## **29 Protection of Complainants and Witnesses**

- 29.1 No person shall retaliate against a complainant or witness for taking part in a complaint or investigation under this Code. The Whistleblower Protection Code applies to any such reprisal.
- 29.2 Section 29.1 does not protect a person who knowingly makes a false complaint.

## **Part 7**

### **Other Officials**

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#### **30 Application**

- 30.1 This Part applies to:
- (a) the members of the Finance and Audit Committee, the Housing Allocation Committee, the Elders Membership Committee, the Appeals Panel, and every other committee or body established by a Document of the First Nation or by Resolution;
  - (b) every person appointed by the First Nation as a director of a First Nation Business Entity;
  - (c) the Band Manager and the Finance Officer; and
  - (d) every employee whose duties include making or recommending decisions on hiring, contracts, housing, membership, education support, loans, program benefits, or finances.

#### **31 Duties of Other Officials**

- 31.1 Sections 7, 8, 9.1, 9.2, 11.2, and 15 apply to every Official described in section 30.1, with the necessary changes.
- 31.2 An Official described in section 30.1 who has a Conflict of Interest in a matter shall declare it in writing to the chair of the body, or to the Band Manager, before the matter is considered, and shall take no part in the matter. The Band Manager shall declare a Conflict of Interest to the Integrity Commissioner and to Council.
- 31.3 Every Official described in paragraphs 30.1(a) to (c) shall file a statement of interests under section 17 within thirty (30) days after appointment and by June 30 of each year after that.

#### **32 Complaints about Other Officials**

- 32.1 A complaint about an employee, other than the Band Manager or the Finance Officer, is dealt with by the Band Manager under the Administration and Personnel Code.
- 32.2 A complaint about the Band Manager, the Finance Officer, or an Official described in paragraph 30.1(a) or (b) is dealt with by the Integrity Commissioner under Part 6, with the necessary changes.
- 32.3 Where the Integrity Commissioner finds that a member of a body described in paragraph 30.1(a) or (b) committed a serious breach or repeated breaches, the member's appointment ends on the day the report is delivered, subject to an appeal under section 26.3, and the vacancy shall be filled as the Document establishing the body provides.
- 32.4 Where the Integrity Commissioner finds that the Band Manager or the Finance Officer committed a breach, the report shall be delivered to Council, which shall act on it under the Administration and Personnel Code and report its action by Notice within thirty (30) days.

## **Part 8**

### **General**

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#### **33 Relationship to Other Laws**

- 33.1 The criminal law, including the offences of theft, fraud, and breach of trust, applies to Officials as it applies to everyone else. A finding under this Code does not prevent a prosecution, and a prosecution does not prevent a proceeding under this Code.
- 33.2 Nothing in this Code limits a right of any person to apply to a court.

#### **34 Amendment**

- 34.1 This Code is a protected Document. It may be amended only with the approval of the Electors in a Ratification Vote under the Community Votes and Petitions Code or the Election Regulations, on a proposal made by Resolution or by petition of at least ten percent (10%) of the Electors.
- 34.2 Council may amend this Code by Resolution, without a vote of the Electors, to add to the duties or disclosure required of Officials or to increase the protection of complainants and witnesses.
- 34.3 A Resolution that purports to suspend this Code, or any provision of it, is void.

### **35 Adoption, Transition, and Coming into Force**

- 35.1 This Code comes into force on the date of the Resolution adopting it, and shall be published on the website of the First Nation within seven (7) days.
- 35.2 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.
- 35.3 Members of Council and Officials in office when this Code comes into force shall file their first statements of interests within thirty (30) days after it comes into force.
- 35.4 Until an Integrity Commissioner is appointed, the functions of the Integrity Commissioner shall be performed by a retired judge or lawyer who is not a Member and meets section 20.2, selected by Council by Resolution.
- 35.5 Until the Tribunal is constituted, a recommendation of removal under paragraph 25.1(f) shall be published, and Electors may rely on it in a petition under the Election Regulations then in force.
- 35.6 Until the Appeals Panel is established, an appeal under section 26.3 shall be heard by a retired judge or lawyer who is not a Member, selected by Council by Resolution, who is not the person acting as Integrity Commissioner.

ADOPTED by Resolution No. \_\_\_\_\_ at a duly convened meeting of the Council of the Fort McMurray No. 468 First Nation held at \_\_\_\_\_, in the Province of Alberta, this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_.

#### **Voting in favour are the following members of Council:**

Chief

\_\_\_\_\_

Councillor

\_\_\_\_\_

Councillor

\_\_\_\_\_

Councillor

\_\_\_\_\_

#### **Certificate of ratification by the Electors**

Ratified by the Electors on (date)

\_\_\_\_\_

Votes in favour / against / total Electors  
on the List

\_\_\_\_\_

Signature of the Electoral Officer

\_\_\_\_\_

## Explanatory Notes

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### 1. Purpose

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This Code sets the standards of conduct for members of Council and other Officials, the rules on conflicts of interest and gifts, public disclosure of interests, and an independent Integrity Commissioner to give advice and decide complaints. These notes are not part of the Code.

### 2. Adoption

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- Council adopts the Code by Resolution. It is in force on that date (section 35.1).
- The Electors ratify it within twelve months (section 35.2). After that it may be amended only by Ratification Vote (section 34).
- Once the Customary Election Regulations, 2026 are in force, every member of Council must comply with this Code, and a serious or repeated breach is a ground for removal (Regulations, sections 20.1(h), 21.7, 24).

### 3. Key provisions

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- No member of Council may vote on their own pay, expenses, contract, loan, job, or house, or those of their Immediate Family. Such a vote is void, and money paid under a void Resolution is repaid within 30 days (section 10).
- No contracts, loans, or employment with the First Nation or its businesses while in office (section 11).
- No contact by members of Council with the person deciding an individual's housing, education, membership, hiring, or other application, other than a written status inquiry at the applicant's request (section 7.3).
- Declared conflicts are entered in a public Conflict Register within five days (section 13).
- Taking part in a matter while in a conflict voids the vote and stops remuneration for 30 days. A second finding in the same term leads to a recommendation of removal (section 14).
- Gifts over \$200 are prohibited, and gifts over \$100 are disclosed (section 15).
- Statements of interests are filed within 30 days after taking office and every June 30, and published in summary. Remuneration stops 30 days after a notice of default (sections 17 to 19).
- The Integrity Commissioner is independent and can be removed only by the Election Appeal Tribunal (sections 20, 21).
- Sanctions take effect after 30 days unless the member appeals to the Appeals Panel. Council cannot reduce a sanction (section 26).
- Committee members, directors of First Nation businesses, the Band Manager, the Finance Officer, and decision-making employees are also covered (Part 7).

## 4. Changes from By-law No. 2014.2

| 2014 section | 2014 provision                                                                         | 2026 provision                                                                                         |
|--------------|----------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|
| 10.1(b)      | No "extraordinary" benefits to self or immediate family                                | No benefits to self or Immediate Family that are not available to Members generally (9.2)              |
| 10.1(d)      | Outside employment and business interests disclosed in writing                         | Statement of interests filed with the Integrity Commissioner. Public register (17, 18)                 |
| 10.1(g)      | Personal use of First Nation personnel, equipment, or facilities with Council approval | Only on terms available to Members generally (7.1)                                                     |
| 10.2         | "A Councillor" shall recuse                                                            | Applies to the Chief and every Councillor. Quorum rule for recusals. Public Conflict Register (12, 13) |
| None         | No rule on votes on a member's own pay or benefits                                     | Vote void. Repayment within 30 days (10)                                                               |
| None         | No complaint process or sanctions                                                      | Integrity Commissioner, sanctions, appeal to the Appeals Panel, referral for removal (Parts 5, 6)      |
| None         | Conduct rules for Council only                                                         | Committee members, directors, senior employees, and decision-making employees included (Part 7)        |

## 5. Legal sources and reference models

| Source                                                                           | Provision                                                                                                   |
|----------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
| Indian Act, s. 2(3)(b)                                                           | Powers of council exercised only at a meeting duly convened                                                 |
| Customary Election Regulations, 2026, ss. 20.1(h) to (l), 21.7, 24               | Compliance with this Code, removal grounds, and the Integrity Commissioner                                  |
| First Nations Financial Management Board, Financial Administration Law Standards | Reference model for conflict of interest rules covering council, committee members, officers, and employees |
| Criminal Code                                                                    | Offences including theft, fraud, and breach of trust apply to Officials as to everyone else                 |